

shall be construed as references to the principal clerk for the time being.

2. This Act may be cited as the Clerks of Session (Scotland) Regulation Act, 1913; and the Clerks of Session (Scotland) Regulation Act, 1889, and this Act shall be construed as one Act, and may be cited together as the Clerks of Session (Scotland) Regulation Acts, 1889 and 1913.

Short title and citation.

CHAPTER 24.

An Act to amend the Shops Act, 1912, in its application to premises for the sale of refreshments. [7th March 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The provisions of section one of the Shops Act, 1912, shall not apply to shop assistants employed in any premises for the sale of refreshments, whether licensed for the sale of intoxicating liquor or not, if their employment is wholly or mainly in connexion with the sale of intoxicating liquors or refreshments for consumption on the premises, and if the occupier of the premises, by such a notice as is hereinafter mentioned, signifies that he elects that instead of those provisions the following provisions shall apply :—

Amendment of 2 Geo. 5. c. 3 in its application to premises for the sale of refreshments.

- (a) No such assistant shall be employed for more than sixty-five hours in any week exclusive of meal times.
- (b) Provision shall be made for securing to every such assistant—

- (i) thirty-two whole holidays on a week day in every year, of which at least two shall be given within the currency of each month and which shall comprise a holiday on full pay of not less than six consecutive days ;

- (ii) twenty-six whole holidays on Sunday in every year, so distributed that at least one out of every three consecutive Sundays shall be a whole holiday :

Provided that two half holidays on a week day shall be deemed equivalent to one whole holiday on a week day.

- (c) Intervals for meals shall be allowed to every such assistant amounting on a half holiday to not less than three-quarters of an hour, and on every other day to not less than two hours, and no assistant shall be employed for more than six hours without being allowed an interval of at least half an hour :

Provided that this provision shall not apply if the only persons employed as such shop assistants are members of the family of the occupier of the premises maintained by him and dwelling in his house.

(d) The occupier shall affix and constantly maintain in a conspicuous position in the premises a notice in the prescribed form referring to the provisions of this section, and stating the steps taken with a view to compliance therewith.

(2) Where the occupier of any premises has signified as aforesaid that he elects that the foregoing provisions shall apply, and any of those provisions are not complied with, the occupier of the premises shall be guilty of an offence against the Shops Act, 1912, and shall be liable to a fine not exceeding—

(a) in the case of a first offence, one pound ;

(b) in the case of a second offence, five pounds ; and

(c) in the case of a third or subsequent offence, ten pounds.

(3) For the purposes of this section, the expression “half holiday” means a day on which the employment of an assistant ceases not later than three o'clock in the afternoon and on which he is not employed for more than six hours including meal-time.

(4) A notice under this section may be withdrawn by the occupier of the shop at the expiration of a year from the date when it was given, and thereafter at the expiration of any succeeding year, and upon any such withdrawal section one of the Shops Act, 1912, shall apply to the shop in like manner as before the notice was given.

(5) The Shops Act, 1912, as amended by this Act, shall, in its application to any premises in respect to which a notice under this section is in force, have effect as though the definition of “shop assistant” included all persons wholly or mainly employed in any capacity at the premises in connexion with the business there carried on.

Short title and
extent.

2.—(1) This Act may be cited as the Shops Act, 1913, and shall be construed as one with the Shops Act, 1912 ; and the Shops Act, 1912, and this Act may be cited together as the Shops Acts, 1912 and 1913.

(2) This Act shall not extend to shops in Ireland in which the business of the sale by retail of intoxicating liquors is carried on.

CHAPTER 25.

An Act to prevent the Spread and provide for the Treatment of Tuberculosis ; and for other purposes connected therewith. [7th March 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :